



VIRTUAL UNIVERSITY ORDINANCE, 2002



CONTENTS

1. Short title and commencement
2. Definitions
3. Establishment and Incorporation of the University
4. Power and functions of the University
5. University open to all classes, creeds, etc
6. Teaching and examinations
7. Officers of the University
8. Chancellor
9. Visitation
10. Rector
11. Powers and functions of Rector
12. Registrar
13. Director Finance
14. Controller of Examinations
15. University Auditor
16. Other officers
17. Authorities of the University
18. Board
19. Powers and functions of the Board

THE PAKISTAN CODE

20. Meetings of the Board
21. Executive Council
22. Powers and functions of the Council
23. Academic Council
24. Powers and functions of the Academic Council
25. Academic and administrative staff
26. University fund, audit and accounts
27. Statutes
28. Regulations
29. Amendment and repeal of statutes and regulations
30. Rules
31. First Schedule
32. Constitution
33. Appointment of Committees by certain authorities
34. General provisions
35. Indemnity and bar of jurisdiction
36. Removal of difficulties



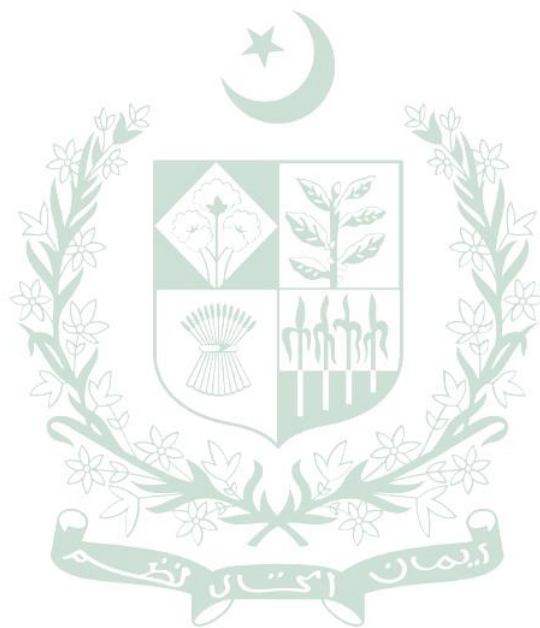
THE PAKISTAN CODE

SCHEDULE

[See section 31]

1. The faculties
2. Dean of Faculty
3. Teaching Departments and Heads of the Department
4. Board of Studies
5. Functions of the Board of Studies
6. Advanced Studies and Research Board
7. Functions of Board of Advanced Studies and Research

8. Selection Board
9. Functions of the Selection Board
10. Finance and Planning Council
11. Functions of the Finance and Planning Council
12. Affiliation Committee
13. Functions of the Affiliation Committee



THE PAKISTAN CODE

VIRTUAL UNIVERSITY ORDINANCE, 2002

ORDINANCE LII OF 2002

An Ordinance to provide for establishment of Virtual University of Pakistan

WHEREAS it is expedient to provide for the establishment of the Virtual University and for matters ancillary thereto;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

Now, THEREFORE, in pursuance of the Proclamation of Emergency of the fourteenth day of October, 1999, and Provisional Constitution Order No. 1 of 1999, read with the Provisional Constitution (Amendment) Order No. 9 of 1999, and in exercise of all powers enabling him in that behalf, the President of the Islamic Republic of Pakistan is pleased to make and promulgate the following Ordinance:—

1. Short title and commencement:—(1) This Ordinance may be called the Virtual University Ordinance, 2002.

(2) It shall come into force at once.

2. Definitions:—(1) In this Ordinance, unless there is anything repugnant in the subject or context—

- (a) “Academic Council” means the Academic Council of the University;
- (b) “affiliated colleges and institutes” means an educational institution affiliated to but not maintained or administered by the university;
- (c) “Authority” means any of the Authority of the University specified in this Ordinance;
- (d) “Board” means the Board of Governors of the University;
- (e) “Chairman” means Chairman of Board;
- (f) “Chancellor” means the Chancellor of the University;
- (g) “Commission” means University Grants Commission or its successor;
- (h) “Controller Examination” means Controller of Examination of the University;
- (i) “Dean” means the Dean of a Faculty of the University;
- (j) “Director” means the Director of a Management Division of the University;
- (k) “Educational Institution” means an institution imparting instructions in a subject or subjects relating to a faculty;

- (l) “Executive Council” means the Executive Council of the University;
- (m) “Faculty” means a Faculty of the University;
- (n) “Government” means the Government of Pakistan;
- (o) “Head” means Head of a Teaching Department of the University;
- (p) “prescribed” means prescribed by statutes, regulations or rules;
- (q) “Principal” means head of an affiliated college or institute;
- (r) “Rector” means the Rector of the University;
- (s) “Registered graduate” means the graduates of the University;
- (t) “Registrar” means the Registrar of the University;
- (u) “teaching departments” means a teaching department of the University;
- (v) “University” means the Virtual University of Pakistan; and
- (w) “University Teacher” means Professors, Associate Professors, Assistant Professors, Lecturers, Tutors and research staff” engaged by the University for teaching undergraduate, postgraduate, honors classes or programs and includes such other persons as may be declared as Teachers by regulations.

3. Establishment and Incorporation of the University:—(1) There shall be established a University to be called the Virtual University of Pakistan with its principal seat at Islamabad.

(2) The University shall consist of—

- (a) Chancellor, Rector, Board, Academic Council, Executive Council, Directors, Deans, Heads of teaching departments, Registrar, Controller of Examinations and such other officers as may be prescribed;
- (b) members off such other authorities, committees and bodies as the Board may constitute or authorize from time to time;
- (c) teachers of the University and its campuses;
- (d) such other officers and members of the staff as tray be determined by the Board from time to time.

(3) The University shall be a body corporate by the name of the “Virtual University of Pakistan” and shall have perpetual succession and a common seal, with powers to acquire, hold and dispose of any property or investments and shall in the said name sue and be sued.

(4) The principal seat of the University will be at Islamabad, and it may set up any number of campuses, virtual campuses or study centers at such places in or outside Pakistan as the Board may determine:

Provided that for setting up of campuses or study centers outside Pakistan, the approval of the Federal Government shall be required.

4. Power and functions of the University:— (1) The University may—

- (a) provide, amongst of others, for instruction and training in information technology, business and management and emerging sciences and in such allied and non-allied branches of learning as it may deem fit, and to make provisions for research, demonstration and other services and for the advancement and dissemination of knowledge in such manner as it may determine;
- (b) provide life long learning, deliver courses and provide educational facilities to a large segment of the population at designated campuses, places of work and residences through the integration of satellite, television, Internet and intranets and emerging technology etc., or through conventional methods;
- (c) prescribe courses of study in such branches of learning as the University may determine;
- (d) admit and examine students;
- (e) hold examinations and to confer or award degrees, diplomas, certificates and other academic distinctions on and to persons who have passed its examinations under prescribed conditions;
- (f) supervise and control the discipline of the students of the University and the affiliated colleges and institutes with special focus on virtual education;
- (g) select and promote faculties;
- (h) establish teaching departments, schools, colleges, faculties, institutes, museums and other centers of learning for the development of teaching and research and to make such arrangements for their maintenance, management and administration as it may determine with special focus on virtual education;
- (i) confer honorary degrees;
- (j) establish and support other facilities for education, training and research;
- (k) decide virtual teaching methods and strategies in order to ensure the most effective educational and training programmes;
- (l) enter into agreements, contracts and arrangements with organizations, institutions, bodies and individuals for carrying out its functions and activities;

- (m) affiliate or associate itself with other institutions for effective discharge of its functions and responsibilities;
- (n) cooperate with other universities and public authorities in such manner and for such purposes as it may determine;
- (o) inspect colleges and other educational institutions affiliated or seeking affiliation with it;
- (p) provide for the teaching of specified courses and training for persons not being the students of the University and to grant certificates and diplomas to such persons;
- (q) recognize the examinations passed or the period of study spent at other universities or places of learning as equivalent to examinations or periods of study in the University or to withdraw such recognition;
- (r) provide Professorship, Associate Professorship, Assistant Professorship and Lectureship, and any other posts and to appoint persons thereto;
- (s) provide and award fellowships, scholarships, exhibitions, bursaries, medals and prizes under prescribed conditions;
- (t) demand and receive such fees and other charges as it may determine;
- (u) receive and manage property transferred and grants, bequests, trusts, gifts, donations, endowments or other contributions made to the University and to invest any funds representing such property, grants, bequests, trusts, gifts, donations, endowments or contributions in such manner as it may deem fit;
- (v) undertake such research and to make provision for research and advisory services with other institutions or with public bodies as it may determine;
- (w) provide for the printing and publication of research and other works;
- (x) appoint members of various bodies and committees for academic and administrative activities;
- (y) create posts for officers and staff and make appointments against the same and prescribe terms and conditions, and powers and duties of such officers and staff; and
- (z) do all such other acts and things as may be necessary to further its objectives.

5. University open to all classes, creeds, etc:—The University shall be open to persons of either sex and of whatever religion, race, class, creed, colour or domicile, or wherever located, who are academically qualified for admission -to the courses of study offered by the University and no such person shall be denied the privileges of the University on the grounds only of sex, religion, creed, race, class, colour or domicile.

6. Teaching and examinations:—(1) The academic programmes of the University shall be conducted in the prescribed manner.

(2) No Bachelor's level degree shall be granted unless a student has passed an examination in Islamic Studies and Pakistan Studies; a non-Muslim student may opt for Ethics in lieu of Islamic Studies.

7. Officers of the University:— (1) The following shall be the officers of the University, namely;

- (a) Chancellor;
- (b) Rector;
- (c) Registrar;
- (d) Deans;
- (e) Directors;
- (f) Chairpersons or Heads of the Teaching Departments;
- (g) Director Finance;
- (h) Controller of Examinations; and
- (i) Such other persons as may be prescribed by the Regulations to be officers.

8. Chancellor:— (1) The President of Pakistan shall be the Chancellor of the University.

(2) The Chancellor shall, when present, preside at the convocation of the University and in his absence, the Rector shall preside at the convocation.

(3) Where the Chancellor is satisfied that the proceedings of any Authority are not in accordance with the provisions of this Ordinance, the Statutes, the Regulations, or the Rules, he may, after calling upon such Authority, cause notice to show why such proceedings should not be annulled, and by order in writing annul the proceedings.

(4) Every proposal, to confer an honorary degree, shall be subject to confirmation by the Chancellor.

(5) The Chancellor shall have the powers to assent to such Statutes as are required to be submitted to him by the Board, withhold assent. or refer them back to the Board for reconsideration.

9. Visitation:— (1) The Chancellor may cause an inspection or inquiry to be made in respect of any matter connected with the affairs of the University and shall, from time to time, direct any person or persons to inquire into or carry out inspection of—

- (a) the university, its buildings, laboratories, libraries, and other facilities.

- (b) any institution, department, school, college or hostel maintained by the University;
- (c) the adequacy of financial and human resources;
- (d) the teaching, research, curriculum, examinations and other matter of the University; and,
- (e) such other matters as may be authorized, by him.

(2) The Chancellor shall communicate, to the Board, his views with regard to the result of visitation and shall, after ascertaining the views of the Board, advise the Board on the action to be taken by it.

10. Rector:— (1) The Rector, who shall be an eminent scholar and an educationist of distinction, shall be appointed by the Chancellor from at least three nominations made by the Board, on such terms and conditions as the Chancellor may determine”

(2) The Rector shall hold office for four years and shall be eligible for reappointment and the Rector appointed before the promulgation of this Ordinance shall be considered to have been, appointed in accordance with the provisions of this

(3) At any time when the office of the Rector is vacant, or the Rector is absent or is unable to perform the functions of his office due to illness or some other cause the Board shall take necessary steps for smooth functioning of the University.

(4) The Rector shall be the Chief Executive and academic officer of the University and shall ensure that the provisions, of this Ordinance, the Statutes, the Regulations and Rules are faithfully observed in order to promote teaching, research, administration, general efficiency and good order of the University, and shall have all powers necessary for this purpose, including administrative control over all, officers, teachers and other employees of the University.

(5) The Rector shall, in the absence of the Chancellor, preside at convocation of the University.

(6) The Rector may, in an emergency which in his opinion requires immediate action on part of the Board, and where a meeting of the Board is not imminent, take such action as he may consider necessary and shall, as soon thereafter as possible, report his action for approval to the Board.

(7) The Rector may delegate, subject to such conditions, if any, as he may deem necessary, any of his powers under this Ordinance to an officer or officers of the University.

11. Powers and functions of Rector:—The Rector shall—

- (a) submit plans of work and budget estimates of the University for consideration of the Board;
- (b) direct the activities connected with the execution of programmes for instruction, training, research, demonstration, services to community, etc;

- (c) authorize expenditure provided for in the approved budget;
- (d) re-appropriate funds within the approved budget and place report before the Board in the next meeting;
- (e) be authorized to write-off articles up to a sum determined by the Board;
- (f) appoint, with the approval of the Board, all officers of the University with the exception of the Chancellor and Rector, and such other persons as may be necessary in accordance with policies and procedures approved by the Board so as to ensure the highest intellectual and normal qualities in the persons appointed;
- (g) appoint, on the recommendation of the Selection Board, teachers, administrative and technical staff of the University;
- (h) appoint paper-setters and examiners for all examinations of the University after receiving panels of names from the relevant Authorities;
- (i) make such arrangements for the scrutiny of papers, marks and results as he may consider necessary;
- (j) direct teachers, officers and other employees of the University to take up such assignments in connection with teaching, research, examinations, administration and other activities in the University as he may consider necessary;
- (k) submit to the Board in accordance with the rules of procedure made by it, reports on the activities of the University and the execution of the plans of work;
- (l) create and fill temporary posts for a period not exceeding six months; and
- (m) undertake any work assigned by the Board.

12. Registrar:— (1) The Registrar shall be a full-time officer of the University and shall be appointed by the Board on such terms and conditions as it may determine.

(2) The Registrar shall—

- (a) be the custodian of the Common Seal and the academic records of the University;
- (b) maintain a Register of Registered Graduates in the prescribed manner;
- (c) be the Secretary of the Board, the Executive Council and such other committees as may be determined; and
- (d) perform such other duties related to academic affairs as may be prescribed by the Rector and other authorities of the University.

13. Director Finance:— (1) The Director Finance shall be a full-time officer of the University and shall be appointed by the Board on such terms and conditions as it may determine.

(2) The Director Finance shall—

- (a) manage the property, the finances and the investments of the University
- (b) prepare the annual and revised budget estimates of the University and present them to the Finance and Planning Council and to the Board through the Rector;
- (c) ensure that the funds of the University are expended for the purposes for which they are provided: and
- (d) perform such other duties as may be prescribed.

14: Controller of Examinations:— (1) The Controller of Examinations shall be a full-time officer of the University and shall be appointed by the Board on such terms and conditions as it may determine.

(2) The Controller of Examinations shall be responsible for all matters connected with the conduct of examinations and perform such other duties as may be prescribed.

15. University Auditor:— There shall be a University Auditor who shall be appointed by the Board, being a person who is a Chartered Accountant within the meaning of the Chartered Accountants Act, 1961 (X of 1961).

16. Other officers:— Subject to the provisions of this Ordinance, the terms and conditions of service and the powers and duties of other officers of the University shall be such as may be prescribed.

17. Authorities of the University:— (1) The following shall be the Authorities of the University—

- (a) Board;
- (b) Executive Council
- (c) Academic Council
- (d) Board of Studies;
- (e) Advanced Studies and Research Board;
- (f) Selection Board;
- (g) Finance and Planning Council;
- (h) Affiliation Committee; and
- (i) Such other authorities as may be prescribed by Statutes.

(2) The term of a member of an Authority appointed or nominated shall commence from the first meeting of the Authority thereafter.

18. Board:—The general supervision and control of administrative academic and financial affairs and the power to lay down the policies of the University shall vest in the Board consisting of the following members, namely:—

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|--|------------|
| (a) Secretary. Information Technology and Telecommunications Division, Ministry of Science and Technology, Government of Pakistan; | Chairman |
| (b) Rector; | Member. |
| (c) Secretary, Ministry of Education or his nominee not below the rank of Joint Secretary; | Member. |
| (d) Secretary, Ministry of Information and Media Development Government of Pakistan; | Member. |
| (e) Chairman of the Commission, or his nominee not below the rank of an officer of Basic Pay Scale 20; | Member. |
| (f) Chairman, National Telecommunications Corporation or his nominee not below the rank of an officer of Basic Pay Scale 20; | Member. |
| (g) one retired judge of the Supreme Court of Pakistan appointed by the Chancellor from at least three nominations made by the Chief Justice of Pakistan; | Member. |
| (h) one serving or retired Rector or Vice Chancellor of a public university appointed by the Chancellor from at least three nominations made by the Nomination Committee; | Member. |
| (i) three eminent educationists or scientists not being employees of the University, appointed by the Chancellor from at least three nominations for each seat made by the Nomination Committee; | Member. |
| (j) one expert from financial sector appointed by the Chancellor from at least three nominations made by the Nomination Committee; | Member. |
| (k) one Dean of the University to be appointed by the Chancellor from at least three nominations made by the Nomination Committee; and | Member. |
| (1) The Registrar of the University; | Secretary. |

(2) The Members of the Board other than *ex-officio* members shall hold office for a term of three years and shall be eligible for re-appointment on the expiry of their term unless the Chancellor terminates the membership earlier;

(3) The office of a nominated member of the Board shall become vacant if he resigns or fails to attend three consecutive meetings of the Board without sufficient cause or leave of absence;

(4) The nomination committee shall consist of Secretary Information Technology and Telecommunications Division. Chairman of the Commission and Rector.

(5) No act or proceedings of the Board shall be invalid by reason only of the existence of a Vacancy in or any defect in the constitution of the Board.

19. Powers and functions of the Board:— (1) The Board may—

- (a) formulate or approve the principles, policies and plans governing the activities and operations of the University so as to facilitate research, teaching and other academic work;
- (b) create a component of the University such as faculties, departments, schools, colleges and institutions under its jurisdiction and to constitute such standing committees, councils and other administrative or academic advisory bodies,” as it deems necessary, and review their work;
- (c) consider and approve annual budget plans of works or special capital expenditure and Audited Accounts of the University;
- (d) create such academic or administrative posts as it may deem necessary and to approve appointments to such posts as it may specify;
- (e) consider and approve annual reports relating to the activities of the University and the execution of the plans of work and to direct the Rector to submit reports relating to any matter specified by the Board;
- (f) make statutes, regulations and rules;
- (g) hold, control and administer the property, funds and resources of the University and to borrow or raise money for the purposes of the University upon such security as may be required under the regulations;
- (h) govern and regulate the finances, accounts and investments of the University;
- (i) transfer and accept transfer of moveable or immovable property on behalf of the University;
- (j) take all such initiatives as it may consider necessary or desirable for the efficient and effective management and functioning of the University;

- (k) regulate, determine: and administer all other matters concerning the University and to this end exercise all other powers in this behalf not specifically mentioned in this Ordinance and the Statutes;
- (l) approve appointment of officers, teaching and administrative staff, in supervisory grades;
- (m) recommend three nominees for appointment as Rector to the Chancellor at least three months before the expiry of the term of Rector; and
- (n) perform such other functions as have been assigned to it by the other provisions of this Ordinance.

(2) The Board may delegate any of its powers to the Rector subject to such conditions as it may deem fit to impose.

20. Meetings of the Board:— (1) The Board shall meet at least twice a year on dates to be fixed by the Rector.

(2) A special meeting may be called at any time by the Chancellor or Rector or on a request by not less than five members of the Board to consider any matter of urgent nature.

(3) In the case of a special meeting not less than ten clear days notice shall be given to the members of the Board and the agenda of the meeting shall be restricted to the matter for which the special meeting is called.

(4) The quorum for a meeting of the Board shall be one half of its members, a fraction being counted as one.

(5) The decisions of the Board shall be expressed to terms of the views of the majority of the members present and voting and. If the members are equally divided, the Chairperson of the Board shall have and exercise a casting vote.

21. Executive Council:— (1) There shall be an Executive Council of the University consisting of the following, namely:

- (a) Rector, who shall be the Chairman of the Council;
- (b) Deans of all the faculties;
- (c) Chairmen or Heads of Department of the University;
- (d) the Controller of the Examination;
- (e) the Director Finance;
- (f) the Registrar, who shall also be the Secretary of Council and
- (g) a nominee of the Board from among the members of the Board.

(2) The quorum for the meeting of the Council shall be one half of total number of the members, a fraction being counted as one.

(3) The Chairperson may nominate any member of the Council to act as Chairperson in his absence.

(4) The Council shall meet at least twice in a year on dates to be fixed by the Chairperson.

22. Powers and functions of the Council:— (1) The Council shall be the management body of the University and subject to the provisions of this Ordinance, shall deliberate, monitor and control various aspects related to the functioning of the University and recommend specific measures to the Board for approval and it may;

- (a) delineate priorities for education, training and research;
- (b) recommend allocation of funds for education, training and research;
- (c) approve the recommendations of the Academic Council of the University on all matters relating to academics, including syllabi and duration of various courses;
- (d) approve appointment of teaching and administrative staff in non supervisory grades;
- (e) lay down guidelines for proper and efficient conduct of various examinations of the University;
- (f) recommend such measures which would foster and enhance interaction and collaboration between the University and the existing national and international organizations, institutions and research centers and the industrial base;
- (g) oversee the financial management of the University;
- (h) propose the fee structure for various programs or examinations of the University;
- (i) workout and approve affiliation measures or linkages with foreign universities and research institutions of repute;
- (j) approve the affiliation or disaffiliation of institutions;
- (k) recommend fellowships, scholarships, prizes, medals. honoraria and other financial assistance for students and research scholars;
- (l) propose statutes for approval of Board of the University;
- (m) prepare or have prepared and revised from time to time rules and regulations for the efficient and effective operation of the University;
- (n) review and, propose measures for effective management and maintenance of discipline among students of the University;

- (o) prepare and finalize the annual report of the University;
- (p) review and assess them of instructions and research;
- (q) prepare plans for the welfare of students;
- (r) determine the academic needs of the University and advise the Board on the planning and development of new and emerging disciplines; and
- (s) perform such other functions: not inconsistent with the provision of this Ordinance. as may either prescribed by Statutes. Rules or delegated by the Board.

23. Academic Council:— (1) The Academic Council shall consist of—

- (a) Rector of the University, who shall be the Chairman of the Academic Council;
- (b) all the Deans of the University;
- (c) all Professors of the University;
- (d) one nominee of Information Technology and Telecommunications Division, Ministry of Science and Technology, Government of Pakistan;
- (e) Chairmen or Heads of Teaching Departments;
- (f) Three persons of eminence in the branches of science and technology relevant to the University, to be nominated by the Board;
- (g) Controller of Examinations;
- (h) Registrar of the University; and
- (i) the senior most Dean of the University shall be the Secretary of the Academic Council;

(2) The Board may co-opt any other person as member of the Academic Council as it may deem appropriate.

(3) Members appointed by nomination shall hold office for a term of three years.

(4) The quorum for a meeting of the Academic Council shall be one third of the total number of members, a fraction being counted as one.

24. Powers and functions of the Academic Council:— (1) The Academic Council shall be the academic body of the University and shall, subject to the provisions of this Ordinance and the Statutes, have the power to lay down proper standards of instruction, research, publication and examination and to regulate and promote the academic life of the University and the its institutes and campuses.

(2) In particular and without prejudice to the generality of the foregoing powers and subject to the provision of this Ordinance and the Statutes, the Academic Council shall have the powers to—

- (a) advise the Board on academic matters;
- (b) regulate the conduct of teaching, research, publications and examinations;
- (c) regulate the admission of students to the courses of studies and examinations in the University;
- (d) regulate the conduct and discipline of the students of the University;
- (e) propose to the Board scheme for the constitution and organization of Faculties and Teaching Departments;
- (f) formulate proposals for the Planning and Development of teaching and research in the University;
- (g) make regulations on recommendations of the Board of Studies prescribing the courses of study and the syllabi for all University examinations;
- (h) regulate the award of studentships, scholarships, exhibitions, medals and prizes;
- (i) develop criterion for affiliation of colleges or institutes and recommend affiliation or disaffiliation of colleges and institutes to the Executive Council;
- (j) frame regulations for submission to the Executive Council;
- (k) appoint or nominate members to the various Authorities to accordance with the provisions of the Ordinance; and
- (l) to perform such other functions as may be prescribed by statutes.

25. Academic and administrative staff:— (1) The academic and administrative staff of the University shall be selected with a view to achieving its stated objectives and basic criteria for their selection shall be the highest standards of competence, integrity and efficiency.

(2) In the case of academic staff, academic qualification and fringe benefits shall not be less than those duly approved by the Commission for such appointments.

26. University fund, audit and accounts:— (1) The University shall have a Fund to which shall be credited income from fees, donations, trusts, bequests, endowments, grants, contributions and any other sources.

(2) No contribution, donation or grant which may directly or indirectly involve any immediate or subsequent financial liability of the University, or which may involve an activity not included in its programmes for the time being, shall be accepted without the prior approval of the Board.

(3) The accounts of the University shall be maintained in such form and in such manner as may be prescribed by rules.

(4) No expenditure shall be made from the funds of the University unless the expenditure is included in the approved budget of the University.

(5) The accounts of the University shall be audited once a year by an Auditor appointed by the Board for the purpose, and observations on the audited accounts, with such annotations as the Director Finance may make, shall be presented to the Board for consideration through the Finance and Planning Council.

(6) The accounts, together with the report of the auditor thereon, shall be submitted to the Board for approval;

(7) The Auditor's report shall certify that the Auditor has complied with the standards of audit and certification laid down by the Institute of Chartered Accountants of Pakistan.

27. Statutes:— (1) Subject to the provisions of this Ordinance, Statutes may be made to regulate or prescribe all or any of the following matters, namely:-

- (a) establishment of institutes and faculties;
- (b) pay and other terms and conditions of service of its employees;
- (c) pension, insurance, gratuity, provident, benevolent or any other fund and other fringe benefits for university employees;
- (d) efficiency and discipline of the University employees;
- (e) admission of educational institutions to the privileges of the University and the withdrawal of such privileges;
- (f) powers and duties of officers and teachers;
- (g) conditions under which the University may enter into arrangements with other institutions or with public bodies for purposes of research and advisory services;
- (h) conditions for appointment of Professors Emeritus and award of honorary degrees;
- (i) maintenance of the Register of Registered Graduates of the University;
- (j) the general scheme of studies including the duration of courses and the number of subjects and papers for an examination; and
- (k) all other matters which by this Ordinance are to be may be, prescribed or regulated by Statutes.

(2) The Executive Council shall propose draft of the Statutes for approval by the Board, which may approve them, or refer them back for reconsideration, and no Statute shall be valid until the Board has approved it.

Provided that the Board shall not approve Statutes affecting the constitution or powers of any Authority until such Authority has been given an opportunity of expressing an opinion in writing upon a proposals.

28. Regulations:— (1) Subject to the provisions of this Ordinance and Statutes. Regulations may be made for all or any of the following matters, namely:—

- (a) courses of study for degrees, diplomas and certificates of the University and the examinations appropriate to them;
- (b) admission of students to the University;
- (c) conditions under which students shall be admitted to the courses and the examinations of the University and shall become eligible for the award of degrees, diplomas and certificates;
- (d) conduct of examinations;
- (e) fees and other charges to be paid by the students for admission to the courses of study and examinations of the University;
- (f) conditions under which a person shall carry on independent research to entitle him to a degree;
- (g) institution of fellowships, scholarships, exhibitions, medals and prizes;
- (h) institution of stipends and free and half-free studentships;
- (i) academic costume;
- (j) use of the library;
- (k) formation of Teaching Departments, Institutes and Boards of Study;
- (l) conduct and discipline of students of the University;
- (m) conditions of residence of the students of the University including the levying of fees for residence in halls of residence and hostels;
- (n) approval and licensing of hostels and lodgings;
- (o) code of ethics for teachers and other employees of the University; and
- (p) all other matters which are to be or may be prescribed by regulations.

(2) The Academic Council shall propose the regulations for approval by the Executive Council.

29. Amendment and repeal of statutes and regulations:—The procedure for adding to amending or repealing the Statutes and the Regulations shall be the same as that prescribed respectively for the framing or making of Statutes and Regulations.

30. Rules:— (1) The Authorities and other bodies of the University may make rules consistent with this Ordinance, the Statute and the Regulations to regulate the conduct of their business and the time and place of meetings and related matters.

Provided that the Board may direct amendment or the annulment of the rules made by another Authority or body under this Section:

Provided further that, if such other Authority or body is dissatisfied with such direction, it may apply for review to the Board whose decision in the matter shall be final.

(2) The Board may make rules to regulate any matter relating to the affairs of the University, which by this Ordinance is not specifically required to be provided for by statutes or Regulations.

31. First Schedule:—Notwithstanding anything to the contrary contained in this Ordinance shall be deemed to be the Statutes framed under section 27 and shall remain in force until they are amended or replaced by new Statutes framed in accordance with this Ordinance.

32. Constitution functions and powers of authorities.—Subject to the provisions of this Ordinance, the constitution, functions and the powers of the authorities for which no specific provision has been made in this Ordinance shall be such as- may be prescribed by Statutes.

33. Appointment of Committees by certain authorities:—The Board, the Executive Council, the Academic Council and any other authorities may from time to time, appoint such standing, special or advisory committees as they may deem fit and may appoint such persons on these committees who are not members of the authorities appointing the committees.

34. General provisions:—The University shall have to work within the framework of the Education Policy and other law or policy framed or amended by the Government from time to time.

35. Indemnity and bar of jurisdiction:—No suit, prosecution or other proceeding shall lie against any person or authority for anything, which is in good faith done or intended to be done under this Ordinance.

36. Removal of difficulties:—(1) If any question arises as to the interpretation of any of the provision of this Ordinance, it shall be placed before the Chancellor whose decision thereon shall be final.

(2) If any difficulty arises in giving effect to any of the provisions of this Ordinance, the Chancellor may make such order, not inconsistent with the provisions of this Ordinance, as may appear to him to be necessary for removing the difficulty.

(3) Where this Ordinance makes any provision for anything to be done but no provision or no sufficient provision has been made in respect of the authority or the time at which it shall be done, then it shall be done by such authority, at such time, or in such manner as the Chancellor may direct.

SCHEDULE

[See section 31]

1. The Faculties:—there shall be a faculty for an Academic Department or a group of Academic Departments, shall include the following faculties and such other faculties as may be prescribed by Statutes, namely:—

- (a) Faculty of Computer Science and Information Technology;
- (b) Faculty of Management;
- (c) Faculty of Science and Technology;
- (d) Faculty of Arts;
- (e) Faculty of Education;
- (f) Such other Faculties as may be determined by the Board.

2. Dean of Faculty:— (1) There shall be a Dean of each Faculty.

(2) The Dean of each Faculty shall be appointed by the Board from amongst the three most senior Professors of the Faculty on the recommendation of the Rector and shall hold office for a period of up to three years and shall be eligible for re-appointment.

(3) The Dean shall present candidates for admission to degree (except honorary Degrees) in the courses falling within the purview of the faculty.

(4) The Dean shall have such powers and duties as may be determined by the Board on the recommendations of the Rector.

(5) The Dean shall exercise such administrative and academic powers as may be delegated to him.

3. Teaching Departments and Heads of the Department:— (1) There shall be a Teaching Department for each subject or a group of subjects, as may be prescribed by Regulations, and each Teaching Department shall be headed by a Head of Department.

(2) The Head of a Teaching Department shall be appointed by the Executive Council on the recommendations of the Rector from amongst three senior most Professors or Associate Professors of the Teaching Department, other than Professors already working as Dean, for a period of three years and shall be eligible for re-appointment.

Provided that in a Teaching Department, in which there is no Professor or Associate Professor, no such appointment shall be made and the Teaching Department shall be looked after by the Dean of the concerned Faculty, with the assistance of the senior most teacher of that department.

(3) The Head of the Teaching Department shall plan, organize and supervise the work of the department and shall be responsible to the Dean for the work of his department.

(4) The Head of the Teaching Department shall under the general supervision of the Rector and the Dean, exercise all administrative, financial and academic powers and such other duties or powers as may be delegated to him.

(5). The Head of the Teaching Department shall prepare a comprehensive annual report on the performance of the department at undergraduate and postgraduate levels, and faculty research and development, and submit it to the Dean of the concerned Faculty for evaluation and submission to relevant Authorities.

4. Board of Studies:— (1) There shall be a separate Board of Studies for each subject or group of subjects, as may be prescribed by the Regulations.

(2) Each Board of Studies shall consist of-

- (a) Head of the concerned Teaching Department who shall act as its Chairman and Convener;
- (b) all Professors and Associate Professors of the Teaching Department;
- (c) up to three teachers other than University teachers to be appointed by the Academic Council and the number will be determined by the Academic Council according to the needs of each Board; and
- (d) three experts to be appointed by the Rector.

(3) The term of office of a member of the Board of Studies other than ex-officio member shall be three years.

(4) The quorum for a meeting of the Board of the Studies shall be one half of the total number of members, a fraction being counted as one.

5. Functions of the Board of Studies:—The functions of the Board of Studies shall be:

- (a) to advise the authorities on all academic matters connected with instruction, research and examination in the subject or subjects concerned;
- (b) to propose curricula and syllabi for all degrees, diplomas and certificate courses in the subject or subjects concerned;
- (c) to suggest a panel of names of paper setters and examiners in the subject or subjects concerned; and
- (d) to perform such other functions as may be prescribed by the regulations.

6. Advanced Studies and Research Board:— (1) The Advanced Studies and Research Board shall consist of—

- (a) Rector of the University, who shall be the Chairman;
- (b) all the Deans;

- (c) one University Professor from each faculty, other than Dean, having research qualifications and experience, to be appointed by the Academic Council;
- (d) one University Professor from each faculty other than Dean to be appointed by the Executive Council;
- (e) one member to be nominated by the Rector; and
- (f) two experts from Research and Development organizations to be nominated by the Board;

(2) The term of office of the members of the Advanced Studies and Research Board, other than ex-officio members, shall be three years.

(3) The quorum for a meeting of the Advanced Studies and Research Board shall be one half of the total number of members, a fraction being counted as one.

(4) The Secretary of the Board shall be appointed by the Rector

7. Functions of Board of Advanced Studies and Research:—The functions of the Board of Advanced Studies and Research shall be to:

- (a) advise the authorities on all matters connected with the promotion of advanced studies, research and publications in the University;
- (b) consider and report to the Authorities on the institution of research degrees in the University;
- (c) propose regulations regarding the award of research degrees;
- (d) appoint supervisors for postgraduate research students and to approve titles and synopses of their thesis or dissertations;
- (e) recommend panels of examiners for evaluation of thesis and other, research examinations after considering the proposals of the Board of Studies in this behalf; and
- (f) perform such other functions as may be prescribed by Statutes.

8. Selection Board:—The Selection Board shall consist of—

- (a) the Rector who shall be the Chairman of the Selection Board;
- (b) the Dean of the concerned Faculty;
- (c) the Head of the concerned Teaching Department or Management Division of the University;
- (d) one member of the Board who shall not be an employee of the University, to be nominated by the Board;

(e) one eminent scholar who shall not be an employee of the University, to be nominated by the Board; and

(f) one expert to be nominated by the Ministry of Science and Technology.

(2) The Director (Admin) shall be the Secretary of the Selection Board.

(3) The members other than ex-officio members shall hold office for free years.

(4) The quorum for a meeting of the Selection Board shall be four.

(5) No member who is a candidate for the post to which appointment is to be made shall take part in the proceedings of the Board and, similarly, the Head of the Teaching Department who is not a Professor of the University shall not take part in the proceedings of the Selection Board for appointment of a Professor.

(6) In selecting candidates for the posts of Professors and Associate Professors, the Selection Board shall co-opt or consult three experts in the subject concerned and in selecting candidates for other teaching posts two experts in the subject concerned, to be nominated by the Rector from a standing list of experts (revised from time to time) for each subject approved by the Board on the recommendations of the Rector.

(7) In case of posts other than teaching positions,” the Selection Board shall consist only of members mentioned at (a), (c), (d), (e) and (f) of sub-paragraph (1) of paragraph 8 of this Schedule.

9. Functions of the Selection Board:—The following shall be the functions of the Selection Board, namely:—

(a) to consider the applications received in response to advertisement and recommend to the Board the names of suitable candidates for appointment and recommend suitable salary for the person concerned;

(b) to consider all cases of promotion or selection of officers of the University and recommend the names of suitable candidates for such promotion or selection to the Board; and

(c) in the event of an unresolved difference of opinion between the Selection Board and the Board, the matter shall be referred to the Chancellor whose decision shall be final.

10. Finance and Planning Council:— (1) The Finance and Planning Council shall consist of—

(a) the Rector, who shall be the Chairman;

(b) one member of the Board to be nominated by the Board;

(c) one financial expert who shall be a nominee of the Board;

- (d) one member of the Academic Council to be nominated by the Academic Council;
- (e) one representative from the INFORMATION TECHNOLOGY and Telecommunications Division, Ministry of Science and Technology, Government of Pakistan not below the rank of Deputy Secretary;
- (f) one Dean to be nominated by the Rector; and
- (g) Director Finance, who shall also be the Secretary.

(2) The term of office of the nominated members shall be three years.

(3) The quorum for a meeting of the Finance and Planning Committee shall be four members.

11. Functions of the Finance and Planning Council:—The functions of the Finance and Planning Council shall be to—

- (a) prepare the annual statement of accounts, propose annual budget estimates and advise the Board thereon;
- (b) review periodically the financial position of the University;
- (c) prepare long term and short-term development plans;
- (d) advise the Board on all matters relating to planning, development, finance, investments and accounts of the University; and
- (e) perform such other functions as may be prescribed under Statutes.

12. Affiliation Committee:— (1) The affiliation committee shall consist of—

- (a) a chairman to be nominated by the Rector; and
- (b) two Professors to be nominated by the Academic Council.

(2) The term of office of the members of the Committee shall be three years.

(3) The Affiliation Committee may co-opt not more than three experts.

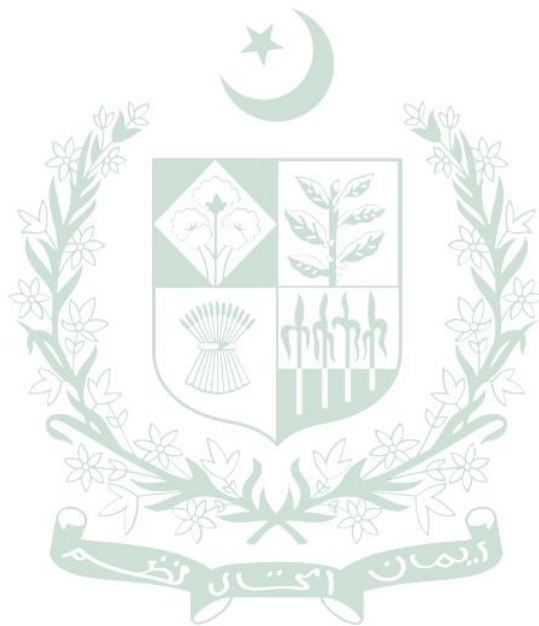
(4) The quorum for a meeting of or for an inspection by the Affiliation Committee shall be two.

(5) An officer of the University to be nominated by the Rector for this purpose shall act as Secretary to the Committee.

13. Functions of the Affiliation Committee:—The following shall be the functions of the Affiliation Committee, namely—

- (a) Workout and propose affiliation frameworks for domestic and foreign institutions seeking affiliation with the University;

- (b) inspect the educational institution seeking affiliation with or admission to the privileges of the University and to advise the Executive Council thereon;
- (c) inquire into complaints alleging breach of conditions of affiliation, by affiliated colleges and to advise the Executive Council thereon; and
- (d) perform such other functions as may be prescribed by regulations.



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